

Chandrapal v. Dakshinanchal Vidyut Vitran Nigam Ltd. & 4 Others

Allahabad High Court · Division Bench · 14 May 2014 · 2014 SCC OnLine All 6769 · Writ - C No. 22075 of 2014 · **Writ petition disposed of directing decision of the long-pending Clause 6.5 representation within one month; recovery under the 1958 Dues Recovery Act kept in abeyance**

HEADNOTE

Where a consumer's representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 has remained undecided for years, issuing a fresh demand and a recovery notice for the arrears under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 is arbitrary. The petitioner had been relegated to Clause 6.5 by an earlier order (28.4.2010) and filed a representation on 17.5.2010, which the Corporation never decided; yet it issued a demand notice (18.2.2014) under the 1958 Act. Finding the fresh demand arbitrary while the representation lay pending, the Court directed decision of the representation within one month and kept the Section 3 demand in abeyance, to abide that decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Fresh recovery while a Clause 6.5 representation lies undecided is arbitrary

QUESTION

Can the licensee issue a fresh demand / recovery notice under the 1958 Act while the consumer's Clause 6.5 representation remains undecided for years?

HOLDING

No. The consumer was pursuing his Clause 6.5 remedy under an earlier order (28.4.2010) and filed a representation on 17.5.2010 which the Corporation never decided; issuing a fresh demand and a Section 3 recovery notice in that situation is arbitrary. The Court directed the competent authority to decide the representation within one month and kept the Section 3 demand in abeyance, to abide that decision. ¶ (pp. 626-627)

LIMITING FACTS

Earlier writ (23342 of 2010) disposed on 28.4.2010 relegating to Clause 6.5; representation dated 17.5.2010 undecided; demand notice dated 18.2.2014 under s.3 of the 1958 Act; arrears not deposited.

PRINCIPLE TAGS

fresh-recovery-arbitrary-while-representation-pending Issuing a fresh demand / recovery notice while a Clause 6.5 representation remains undecided is arbitrary; the representation must be decided first and recovery kept in abeyance. ¶ (pp. 626-627)

billing-objection-to-executive-engineer-under-6.5 A disputed-arrears grievance pursued under Clause 6.5 must actually be decided by the competent authority before recovery is pressed. ¶ (pp. 626-627)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE CORRECTNESS OF THE DISPUTED ARREARS

Left to the competent authority to decide on the Clause 6.5 representation within one month. ¶ (p. 627)